

23TRCV01411 23TRCV01411

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Case Number: 23TRCV01411 Hearing Date: August 25, 2026 Dept: E

Superior Court
of California

County of Los
Angeles

Southwest
District

Torrance Dept. E

BLADIMIR
GONZALEZ and NANCY BRUNDA AGUILA,

Plaintiff,

Case No.:

23TRCV01411

vs.

[Tentative]
Granted

HONDA
MOTOR COMPANY, LTD; AMERICAN HONDA MOTOR COMPANY, INC., HONDA NORTH AMERICA,
INC., and HONDA OF AMERICA MANUFACTURING, INC.; and DOES 1 to 100, Inclusive,

Defendants.

Hearing

Date: August
25, 2026

Moving Party: Defendant American Honda Motor
Company

Responding Party: Plaintiffs Bladimir Gonzalez and Nancy
Brunda Aguila

HEARING: Motion for Summary Judgment

The
Court considered the moving, opposition, and reply papers.

RULING

The Court grants the Motion for Summary Judgment.

BACKGROUND

On May 3, 2023, Plaintiffs Bladimir
Gonzalez and Nancy Brunda Aguila filed the Complaint against Defendant American
Honda Motor Company alleging causes of action for strict products liability,
negligent products liability, exemplary damages, and loss of consortium
damages.

On May 6, 2026, Defendant filed the
Motion for Summary Judgment.

On August 5, 2026, Plaintiffs filed
the Opposition.

On August 14, 2026, Defendant filed
the Reply.

EVIDENTARY

OBJECTIONS

Defendant's objections to Plaintiff's evidence

Overruled: 1-8

Sustained:

LEGAL

STANDARD

The function of a motion for summary judgment or adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) Code of Civil Procedure section 437 subdivision (c) "requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (*Adler v. Manor Healthcare Corp.* (1992) 7 Cal.App.4th 1110, 1119.) "The function of the pleadings in a motion for summary judgment is to delimit the scope of the issues; the function of the affidavits or declarations is to disclose whether there is any triable issue of fact within the issues delimited by the pleadings." (*Juge v. County of Sacramento* (1993) 12 Cal.App.4th 59, 67, citing *FPI Development, Inc. v. Nakashima* (1991) 231 Cal. App. 3d 367, 381-382.)

As to each cause of action, as framed by the complaint, the defendant moving for summary judgment or summary adjudication must satisfy the initial burden of proof by presenting facts to show "that one or more elements of the cause of action ... cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c(p)(2); see also *Scalf v. D. B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1520.) Courts "liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party." (*Dore v. Arnold Worldwide, Inc.* (2006) 39 Cal.4th 384, 389.)

"Once the defendant has met that burden, the

burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto.” (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 162.) To establish a triable issue of material fact, the party opposing the motion must produce substantial responsive evidence. (Id. at 163.)

DISCUSSION

The crash at issue occurred on June 2, 2021, at approximately 6:10 a.m. on westbound State Highway 82, west of Carbondale in Garfield County, Colorado.

Jesus De Santiago was driving a 2006 TL owned by Emma Saenz. Plaintiff Bladimir Gonzalez was seated in the front passenger seat, asleep with his head against the door. The crash occurred when De Santiago made a sudden left turn to avoid rear-ending a vehicle ahead of him. He then attempted to turn right, and the vehicle yawed into the median. Gonzalez sustained significant injuries. The vehicle’s two other occupants sustained no significant injuries.

Defendant moves for summary judgment on four independent grounds, each resting on the Colorado Products Liability Act and its related presumptions.

First, Defendant argues that the 2006 Acura TL was state of the art when it was manufactured and sold and is therefore presumed non-defective as a matter of law.(C.R.S. § 13-21-403(1)(a).) Defendant emphasizes that this presumption does not shift the burden of persuasion and that the burden of establishing the plaintiffs' claims remains with the plaintiffs. (Mile Hi Concrete, Inc. v. Matz (Colo. 1992) 842 P.2d 198, 205.) Defendant contends the undisputed facts show the vehicle was state of the art, pointing to the vehicles Electronic Brake Distribution, Brake Assist, and Vehicle Stability Assist, a body structure engineered to disperse collision forces while maintaining the integrity of the passenger compartment, front and rear door beams, extensive use of lightweight high-strength steel in the passenger safety cage, deformable front and rear structures, standard side curtain airbags, and adjustable rear outboard head restraints. Defendant argues these features were designed to keep the vehicle on the road in an emergency and to protect occupants in a crash, noting that two of the three occupants in this high-speed rollover escaped without

significant injury.

Second, Defendant

argues that the 2006 Acura TL complied with the Federal Motor Vehicle Safety Standards, including the standard governing roof strength. Colorado law rebuttably presumes that a product was not defective and its manufacturer not negligent when the product, at the time of sale, complied with any applicable code, standard, or regulation adopted or promulgated by the United States or this state or any of their agencies. (C.R.S. § 13-21-403(1)(a).) Defendant relies on the rule that evidence of compliance with applicable federal regulations is admissible to show that a product is not defective. (States v. R.D. Werner Co., Inc. (Colo.App. 1990) 799 P.2d 427, 431.) Defendant contends the undisputed evidence shows the vehicle complied with all applicable standards when sold new, including FMVSS 216, which governs roof strength.

Third, Defendant

argues that the 2006 Acura TL was more than ten years old when De Santiago crashed it and injured Plaintiff Gonzalez. Colorado law provides that, ten years after a product is first sold for use or consumption, it is rebuttably presumed that the product was not defective, that its manufacturer was not negligent, and that all warnings and instructions were proper and adequate. (C.R.S. § 13-21-403(3).) Defendant characterizes this as a rebuttable presumption that prevails in the absence of evidence to the contrary. (Squires ex rel. Squires v. Goodwin (D.Colo. 2011) 829 F.Supp.2d 1041, 1061.) Defendant states that final assembly was completed on December 22, 2005, that the vehicle was sold new on December 31, 2005, and that the crash occurred on June 21, 2021, more than fifteen years later. Defendant argues that because Plaintiffs cannot offer admissible evidence to rebut the sale date or the vehicle's age, it cannot be held liable for the strict and negligent product liability claims.

Fourth, Defendant

argues that Plaintiff Aguila's loss of consortium claim fails with the underlying claims. Under Colorado law, a loss of consortium claim is derivative of the substantive claims. (Draper v. DeFrenchi-Gordineer (Colo.App. 2011) 282 P.3d 489, 495.) Derivative claims depend entirely on the injured person's right to recover. (Colorado Compensation Ins. Authority v. Jorgensen (Colo. 2000) 992 P.2d 1156, 1164.) Defendant concludes that because Plaintiff Aguila's claim is derivative of the strict products liability and negligence claims, it likewise fails.

In opposition,

Plaintiffs respond that each of the C.R.S. § 13-21-403 presumptions on which the motion rests are rebuttable, a point they note Defendant concedes, and they contend that their prima facie showing of a design defect rebuts those presumptions. (C.R.S. § 13-21-403(1), (3).)

Plaintiffs argue

that the evidentiary standard for rebutting the presumption is a preponderance of the evidence. (*Tafoya v. Sears Roebuck & Co.* (10th Cir. 1989) 884 F.2d 1330, 1335-1336.) They further argue that once a trial court concludes that a plaintiff has established a prima facie case, it is reversible error to instruct the jury on a section 13-21-403 presumption. (*Wagner v. Case Corp.* (10th Cir. 1994) 33 F.3d 1253, 1257.)

Plaintiffs maintain

that, to prove a product defective under Colorado law, a plaintiff must show that the product was defective and, because of the defect, unreasonably dangerous, that the defect existed when the product left the defendant's control, that the product reached the plaintiff without substantial change in its condition, that the plaintiff was injured, and that the defect caused the injury. (*Simon v. Coppola* (Colo.App. 1993) 876 P.2d 10, 15.) They argue that Colorado applies a risk-benefit analysis to the question of unreasonable danger, requiring the plaintiff to show that the risks outweigh the benefits of the design. (*Armentrout v. FMC Corp.* (Colo. 1992) 842 P.2d 175, 183.) Plaintiffs describe that inquiry as whether the magnitude of the danger outweighs the utility of the design. (*McHargue v. Stokes Div. of Pennwalt* (D.Colo. 1988) 686 F.Supp. 1428, 1440.) They add that in a design-defect case the risk-benefit test essentially subsumes the issue of negligence. (*Walker v. Ford Motor Co.* (Colo. 2017) 406 P.3d 845, 852.)

Applying that

framework, Plaintiffs contend the evidence establishes each element. They argue the 2006 Acura TL was defective and unreasonably dangerous, as their expert has determined the risks posed by the unduly weak roof structure outweighed the benefits of its design, and that this prima facie showing rebuts the statutory presumptions and defeats summary judgment.

Colorado's Product

Liability Act creates rebuttable presumptions that a product is not defective

and that its manufacturer was not negligent, where the product conformed to the state of the art at the time of sale (C.R.S. § 13-21-403(1)(a)), where it complied with an applicable code, standard, or regulation of the United States or this state at the time of sale (C.R.S. § 13-21-403(1)(b)), and where the product was first sold for use or consumption more than ten years before the injury (C.R.S. § 13-21-403(3)). When the court determines by a preponderance of the evidence that the facts giving rise to a presumption have been established, the presumption applies. (C.R.S. § 13-21-403(4).)

All three §

13-21-403 presumptions that Defendant relies on are rebuttable by prima facie evidence of a defect. (Tafoya, supra, 884 F.2d 1330, 1337, fn. 13; Mile Hi Concrete, Inc., supra, 842 P.2d 198, 204; Wagner, supra, 33 F.3d 1253, 1257.) A plaintiff must rebut the presumption with competent evidence. An expert's speculation does not rise to the status of contradictory evidence, and a court is not bound by expert opinion that is speculative or conjectural. (McGonnell v. Kaiser Gypsum Co., Inc. (2002) 98 Cal.App.4th 1098, 1106.) A plaintiff cannot manufacture a triable issue of fact through use of an expert opinion with self-serving conclusions devoid of any basis, explanation, or reasoning. (Ibid.) An opinion that is purely conclusory, unaccompanied by a reasoned explanation connecting the factual predicates to the ultimate conclusion, has no evidentiary value. (Jennings v. Palomar Pomerado Health Systems, Inc. (2003) 114 Cal.App.4th 1108, 1117.)

Here, Defendant has

shown that the subject vehicle was state-of-the-art at the time of manufacture, complied with federal vehicle safety standards, and was more than 10 years old. (UMF 13, 15-20.) Consequently, Defendant has shown that the § 13-21-403 presumptions apply in the instant case and thus Plaintiff cannot show any defect as to the subject vehicle.

In opposition,

Plaintiffs have provided the testimony of their expert, Brian Herbst. Mr. Herbst states that he is a mechanical engineer with decades of experience but fails to provide any details regarding this alleged experience. Furthermore, his declaration merely concludes that the roof of the subject vehicle was defective without providing any reasoning or analysis. Thus, the Court finds that the unfounded opinion does not rise to the status of contradictory evidence. (McGonnell, supra, 98 Cal.App.4th 1098, 1106.) Plaintiffs have provided no other evidence of a defect in the subject vehicle. Consequently, as

Plaintiffs have not shown a triable issue of material fact regarding the presence of a defect, the presumptions stand, and Plaintiffs cannot establish that the subject vehicle was defective. Last, as the loss of consortium cause of action is derivative of the products liability causes of action, it is also defective.

Therefore, the
Court grants the Motion for Summary Judgment.